



Procedure No: EXP202314688 (AI/00421/2023)

RESOLUTION OF ARCHIVING OF PROCEEDINGS

From the proceedings conducted by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 05/10/23, A.A.A. (the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against the entity XFERA MÓVILES, S.A., with CIF: A82528548 (the respondent), for the alleged violation of Law 11/2022, of June 28, General Telecommunications Law (LGTEL).

The facts stated by the complainant in their writing concern the receipt of commercial calls on their mobile line without their consent.

Along with the complaint, the following documentation is attached:

- Certificate proving the registration in the Robinson List of the receiving line ***PHONE.1 since 15/02/17.
- Screenshot of the call log received on 20/09/23 from the phone number ***PHONE.2, along with the audio file of that call.

SECOND: On 11/12/23, an admission agreement for processing the complaint was issued by the Director of the Spanish Agency for Data Protection, in accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD).

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR) and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, carrying out, among others, the following actions and being aware, among others, of the following points:

- Analyzed the recording provided by the complainant, it is noted that the call is on behalf of the company YOIGO, and although the complainant insists on being informed of how their phone number was obtained, the interlocutor responds "from their database," "from the internet," and other evasive answers. Finally, in response to the complainant's insistence and warnings about the possible illegality of the call, the calling party interrupts the call. It is noteworthy that both the company on whose behalf the call is made, Yoigo, and the one currently providing the service to the complainant, MasMóvil, belong to the same group, XFERA MÓVILES, S.A.
- A request for the ownership of the calling number at the time of the call was made to COLT TECHNOLOGY SERVICES, S.A.U. SOLE PROPRIETORSHIP, the operator of the claimed phone number, and this Agency was informed that at the time of the call, the number in question was assigned to Activo TI, S.L. They added that upon requesting information from this entity, they received a response indicating that the number in question was leased to NET VOISS, S.A.C. at the indicated time and that it was subsequently deactivated on February 2, 2024.
- Requested from TECH TELECOM LEGAL SERVICES, S.L., representative of the voice over IP operator NET VOISS, S.A.C. (hereinafter NET VOISS), information about the final customer who had been assigned the phone number from which the advertising call was made, on March 5, 2024, this Agency received a letter stating that their represented NET VOISS, which holds a license with the CNMC only as a reseller of telephone numbering, resold the number in question B.B.B. They attached a sales contract signed with this investigated party confirming the assignment of the phone number indicated in the complaint with a registration date of August 24, 2023.
- A request for information was made to B.B.B. on 11/03/24, and no response has been received by this Agency.

- According to the search conducted through the Internet, the activity of the originating phone number of the call has been reported to listaspam.com as being used for telemarketing campaigns for Yoigo, among others.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 114.1.b) of the LGTEL, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this sanctioning procedure:

1. The sanctioning competence will correspond to: (...) b) to the Spanish Agency for Data Protection, in the case of serious infringements of Article 107 classified in section 30 and minor infringements of Article 108 classified in section 11 when the rights of end users regarding data protection and privacy recognized in Article 66 are violated;

II

Summary of the facts

3/4

According to the claimant, they receive commercial calls on their mobile line from the phone number ***TELÉFONO.2, without their consent and while being included in the Robinson List.

To corroborate these claims, they present, along with the complaint document, a screenshot of the call log for the call received on 20/09/23 from the phone number ***TELÉFONO.2, and the audio file of that call, which confirms that the call is on behalf of the company YOIGO offering its products.

Within the preliminary investigative actions to clarify the facts, the General Subdirectorate of Data Inspection became aware, among other things, of the following points:

- Analyzed the recording provided by the claimant, it is confirmed that the call is on behalf of the company YOIGO, a company that belongs to the group XFERA MÓVILES, S.A.

- According to the company COLT TECHNOLOGY SERVICES, S.A.U., operator of the phone number from which the commercial call was made, this phone number was assigned to the company NET VOISS, S.A.C.

- According to the company NET VOISS, S.A.C., the phone number from which the commercial phone call was made was resold to the company B.B.B. with RUC (tax identification number in Peru) ***RUC.1 and address at ***DIRECCION.1. The sales contract signed with this Peruvian operator is attached, which confirms the assignment of the phone number indicated in the complaint with a registration date of August 24, 2023.

- A request for information was made to B.B.B. on 11/03/24, and no response has been received by this Agency.

III

Conclusion

Regarding the phone number ***TELÉFONO.2, assigned to the entity B.B.B. on the day the commercial phone call was made, apart from the fact that no response has been received by this Agency to the request made, it is registered with an address in Lima (Peru) and a representative of the company has not been located in the European Union, so the authorship of the calls could not be determined.

Therefore, based on the indicated points, it is not possible to attribute responsibility for the claimed facts, as the conditions for initiating a sanctioning procedure for violation of the LGTEL are not met, nor to continue the investigative actions.

Thus, in accordance with the indicated points, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO FILE the present actions.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

SECOND: TO NOTIFY this resolution to A.A.A. and to the entity XFERA MÓVILES, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es